

Introduction to Political Philosophy - Subject: **The Modern State**

While the organization of the best form of government has been debated for thousands of years, the modern state utilizes the tradition of the social contract to govern its people and maintain order. The idea of the social contract originated from historical thinkers like Thomas Hobbes and John Locke, who used this idea to explain the relationship between a government and its citizens. The social contract allows individuals to exchange certain freedoms for the state's protection of their natural rights, and through the implicit consent of its citizens, the government gains legitimacy to establish laws and institutions. Political equality, seen through concepts like equal rights and fair representation, is an important outcome of the modern state's use of the social contract. However, Emma Goldman writes that the state is a strong inhibitor of freedom, supporting the turn to anarchy and the abolition of the state. This essay argues that the modern state is the most efficient approach to providing political equality by analyzing the role of John Locke's social contract and Charles Mills' doubts about its inherent nature.

First, the modern state is best suited to create and defend political equality through its framework, structure, and laws, especially compared to alternatives like anarchism. Before a government can start to provide equality, it must first maintain equality within its own structure. The current form of authority in the United States, a democratic republic, is an excellent example of how Locke's ideas for a limited government play a role in the modern state. With the three branches of the government having different responsibilities, this system of checks and balances upholds justice and prevents the concentration of power into a single branch. Each branch has a way to regulate the power of another, making it virtually impossible for a single group to take control and oppress others. Building on the concept of a fair and equal government, the modern state effectively creates equality through the social contract it establishes with its citizens. This

contract creates a set of laws to protect our rights from others, applying to everyone equally, regardless of factors such as race, gender, or status. The state also works as an impartial judge in these matters, ensuring punishments are delegated without bias. Nonetheless, critics like Emma Goldman provide a bleak outlook on the state's role in political equality. She condemns the state as "the altar of political freedom and ... maintained for the purpose of human sacrifice" (Goldman 11), arguing that it directly hinders society's ability to be free and equal. Goldman sees the modern state as nothing more than an advantage for the powerful and, as an anarchist, believes it should be abolished to maximize human liberties. However, I argue that this is a highly impractical way to create equality and instead works against the ideas she hopes to achieve. Goldman turns to a rather radical conclusion in abolishing the state and overlooks the inherently selfish nature of human beings, which will become prevalent without a government. A state of nature with no form of governing body or set of rules will lead to the oppression and silencing of the weak, contrary to what Goldman believes. Locke says it best when he claims, "self-love will make men partial to themselves and their friends... ill nature, passion, and revenge will carry them too far in punishing others" (Locke 275). Through examining Locke's view of the state of nature, one can see how the government works to protect our rights and liberties rather than diminish them. Without the support of laws and institutions, punishment will be grounded in bias and revenge, impeding the path to a fair society. This transition into the modern state's structured form of living is the best way to ensure political equality for its citizens. By establishing democratic representation through aspects like voting and freedom of speech, the state creates ways to protect the voices of the minority. These protections, no matter how small, still defend equality among its people and would not exist in an anarchist society. The

social contract that citizens form with the modern state grants political equality through these institutions far more practically than Goldman's anarchist vision.

Furthermore, the modern state offers a flexible form of government that can adapt to address shortcomings in creating political equality. To preface, it is obvious that the social contract is not completely perfect, highlighted by Charles Mills' claim that it started as "a system of political and economic arrangements designed to provide white people with exclusive rights to land, labor, and political power" (Mills 13). Mills argues that racism is deeply embedded in the history of the contract, viewing it as something that maintains the power and privileges of the white man. Other racial groups are excluded from these benefits, with the drawbacks affecting all facets of the state, including economic structures, legal systems, and even education. However, I argue that this is exactly where the practicality of the modern state's social contract shines brightest. The social contract's ability to reform and improve the freedoms it provides has been constantly proven throughout American history, contrary to the original contract that Mills critiques. To demonstrate, consider the racism that was prevalent in the formation of the initial social contract in America. Certain racial groups, such as African Americans, were solely considered lower class and were not granted any rights at all. Nonetheless, citizens made use of the right to reform and banded together to fight for the abolition of slavery, resulting in the ratification of the 13th Amendment. The fight for racial equality did not stop there, as campaigns like the Civil Rights Movement led the United States to pass the Civil Rights Act of 1964. This law prohibited discrimination based on race, gender, or sex, marking a huge leap forward in achieving political equality in the United States. The early sexism present in the development of the American government highlights another case where a social contract can produce reparations. Women were not considered a part of the political world at all, with their opinions

and ideas being shunned by men. However, women's suffrage supporters marched and lobbied for decades, forcing the state to address and repair these issues within the political system. These activists' relentless efforts to combat sexism in the modern state eventually led to the establishment of the 19th Amendment, allowing anyone to vote regardless of sex. Through the opportunities that the social contract offers, the modern state forms a concrete way of achieving equality for all its citizens. Even now, modern policies like affirmative action work to fight the systematic oppression and racism that Mills expresses in his idea of the racial contract.

Affirmative action, which helped to increase the diversity of schools and workplaces around the country, acts as a great example of how important the flexibility of the modern state is. This right to reform is essential for progression, rooted in the very fundamentals of the social contract, as Locke explains "whenever the legislative or executive power fails to protect the people's rights or acts in ways that violate their trust, the people have the right to change" (Locke 412). This ability to adapt gives the modern state a realistic approach to solving issues, as it is impossible for the construction of a state to foresee and address every single obstacle that might arise. The formation of a social contract grants the basic right to amend and improve laws, building a platform for the state to address modern problems with new solutions. By allowing for the adaptation of the state, the social contract continues to provide political equality for its citizens even as society evolves.

In conclusion, the modern state remains the most effective system in not only producing political equality but defending it as well. Through Locke's idea of the social contract, the modern state is balanced through limitations, creating laws and rights that apply to all citizens fairly. While this ensures a just legal framework, it also offers protection against threats like bias and injustice. Whereas Emma Goldman suggests the abolition of the state, this absence of

government will find these threats to be significantly more detrimental to the goal of an equal and free society. Moreover, the modern state's practical capacity for reform is overlooked by thinkers like Charles Mills, as protests for equality have historically found success. His view that the stagnant social contract perpetuates racial oppression is countered by its evolution in America, which has demonstrated that the state develops to meet the needs of a growing society. By balancing governance with the protection of individual rights, the modern state is a viable foundation to provide political equality among all its citizens.

Works Cited

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